



MassMutual, Rest, Aware Super and Goodman - Moorabbin Airport

MN-10012

Phase 1 Determination

Acquisition may be put into effect

21 May 2026

1. Determination and statement of reasons

Notified acquisition	The acquisition of 100% of the issued shares in Moorabbin Airport Corporation Pty Ltd (Moorabbin Airport Corporation) and leasehold interests in various non-aviation commercial properties at the Moorabbin Airport site by a group of investors comprised of MassMutual, REST, Aware Super and Goodman Limited (Goodman) (together, the Investors) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The Investors comprise: • MassMutual, a mutual life insurance company based in Massachusetts, United States; • REST, an Australian profit-to-member superannuation fund with approximately 2 million members and around \$105 billion in funds under management; • Aware Super, an Australian superannuation and retirement fund, with almost 1.2 million members and \$198.7 billion in funds under management; and • Goodman, part of the Goodman Group, an ASX-listed industrial property and digital infrastructure business. Goodman's primary business activities include the ownership, development and management of essential real estate assets, including logistics facilities, warehouses and data centres worldwide. The target, Moorabbin Airport Corporation, holds the long-term airport lease granted by the Commonwealth in relation to Moorabbin Airport, a metropolitan airport located south-east of the Melbourne CBD. Moorabbin Airport provides services to facilitate general aviation activities such as flight training, private air charter, freight, recreational flying and air work and emergency services. Moorabbin Airport has only one regular passenger transport service, with King Island Airlines flying between King Island and the mainland daily. The Moorabbin Airport site consists of industrial land as well as aviation land, and contains over 250 mixed-use, large and small businesses, including Kingston Central Plaza, Direct Factory Outlet (also known as DFO) and the Chifley Business Park. Goodman currently holds 100% of the issued shares in Moorabbin Airport Corporation indirectly.
Overlap and relationship between the parties	The Moorabbin Airport site includes industrial land, and the Investors have interests in industrial land across Greater Melbourne. The Moorabbin Airport site also includes aviation land, and the Investors, excluding Goodman, also hold interests in other airports, which either focus on different primary operations to Moorabbin Airport (that is, they are focused on regular passenger transport rather than general aviation services) or offer general aviation services outside of Victoria.
Reasons for determination	When making a determination in Phase 1, the Australian Competition

	and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. During consultation, some third parties raised concerns, primarily about the potential for aviation land surrounding Moorabbin Airport to be converted to non-aviation land, however these concerns generally did not relate to competition issues arising from the Acquisition. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • there is limited horizontal overlap in relation to the interests of the Investors in industrial land and the industrial land at the Moorabbin Airport site. The Investors other than Goodman (noting that Goodman's interest in Moorabbin Airport Corporation would reduce as a result of the Acquisition) have limited investments in industrial land in Greater Melbourne, and alternative industrial land would continue to be available following the Acquisition; and • there is limited horizontal overlap between the aviation services supplied at Moorabbin Airport and the interests of the Investors in other airports, as the other airports either focus on different primary operations to Moorabbin Airport (that is, they are focused on regular passenger transport rather than general aviation services) or offer general aviation services outside of Victoria.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Philip Williams pursuant to a delegation under section 25(1) of the Act